

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5229 Revision No.: 28 Date Of Last Revision: 12/03/2025

State: Texas

Area: Texas Counties of El Paso, Hudspeth

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.16
01012 - Accounting Clerk II		19.26
01013 - Accounting Clerk III		21.54
01020 - Administrative Assistant		28.59
01035 - Court Reporter		22.99
01041 - Customer Service Representative I		15.37
01042 - Customer Service Representative II		16.78
01043 - Customer Service Representative III		18.82
01051 - Data Entry Operator I		14.01
01052 - Data Entry Operator II		15.47
01060 - Dispatcher, Motor Vehicle		19.99
01070 - Document Preparation Clerk		15.47
01090 - Duplicating Machine Operator		15.47
01111 - General Clerk I		14.56
01112 - General Clerk II		15.89
01113 - General Clerk III		17.83
01120 - Housing Referral Assistant		22.86
01141 - Messenger Courier		15.61
01191 - Order Clerk I		14.48
01192 - Order Clerk II		15.80
01261 - Personnel Assistant (Employment) I		18.82
01262 - Personnel Assistant (Employment) II		21.05
01263 - Personnel Assistant (Employment) III		23.48
01270 - Production Control Clerk		19.39
01290 - Rental Clerk		14.25
01300 - Scheduler, Maintenance		18.34

01311 - Secretary I	18.34
01312 - Secretary II	20.51
01313 - Secretary III	22.86
01320 - Service Order Dispatcher	17.86
01410 - Supply Technician	28.59
01420 - Survey Worker	18.31
01460 - Switchboard Operator/Receptionist	13.73
01531 - Travel Clerk I	16.68
01532 - Travel Clerk II	18.56
01533 - Travel Clerk III	19.83
01611 - Word Processor I	16.34
01612 - Word Processor II	18.34
01613 - Word Processor III	20.51
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	22.19
05010 - Automotive Electrician	18.30
05040 - Automotive Glass Installer	17.00
05070 - Automotive Worker	17.00
05110 - Mobile Equipment Servicer	14.18
05130 - Motor Equipment Metal Mechanic	19.73
05160 - Motor Equipment Metal Worker	17.00
05190 - Motor Vehicle Mechanic	19.73
05220 - Motor Vehicle Mechanic Helper	12.76
05250 - Motor Vehicle Upholstery Worker	15.61
05280 - Motor Vehicle Wrecker	17.00
05310 - Painter, Automotive	18.30
05340 - Radiator Repair Specialist	17.00
05370 - Tire Repairer	15.58
05400 - Transmission Repair Specialist	19.73
07000 - Food Preparation And Service Occupations	
07010 - Baker	13.42
07041 - Cook I	12.75
07042 - Cook II	15.27
07070 - Dishwasher	11.75
07130 - Food Service Worker	11.53
07210 - Meat Cutter	14.51
07260 - Waiter/Waitress	11.30
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	19.77
09040 - Furniture Handler	10.98
09080 - Furniture Refinisher	19.77
09090 - Furniture Refinisher Helper	13.77
09110 - Furniture Repairer, Minor	16.85
09130 - Upholsterer	19.77
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	13.05
11060 - Elevator Operator	13.63
11090 - Gardener	20.61
11122 - Housekeeping Aide	13.63

11150 - Janitor	13.63
11210 - Laborer, Grounds Maintenance	14.77
11240 - Maid or Houseman	12.44
11260 - Pruner	13.52
11270 - Tractor Operator	18.53
11330 - Trail Maintenance Worker	14.77
11360 - Window Cleaner	14.29
12000 - Health Occupations	
12010 - Ambulance Driver	16.09
12011 - Breath Alcohol Technician	24.11
12012 - Certified Occupational Therapist Assistant	33.12
12015 - Certified Physical Therapist Assistant	31.87
12020 - Dental Assistant	17.94
12025 - Dental Hygienist	39.81
12030 - EKG Technician	36.55
12035 - Electroneurodiagnostic Technologist	36.55
12040 - Emergency Medical Technician	16.09
12071 - Licensed Practical Nurse I	21.56
12072 - Licensed Practical Nurse II	24.11
12073 - Licensed Practical Nurse III	26.90
12100 - Medical Assistant	17.52
12130 - Medical Laboratory Technician	23.94
12160 - Medical Record Clerk	19.64
12190 - Medical Record Technician	21.97
12195 - Medical Transcriptionist	17.29
12210 - Nuclear Medicine Technologist	53.00
12221 - Nursing Assistant I	13.27
12222 - Nursing Assistant II	14.93
12223 - Nursing Assistant III	16.29
12224 - Nursing Assistant IV	18.28
12235 - Optical Dispenser	16.61
12236 - Optical Technician	18.13
12250 - Pharmacy Technician	18.46
12280 - Phlebotomist	17.70
12305 - Radiologic Technologist	31.81
12311 - Registered Nurse I	26.44
12312 - Registered Nurse II	32.34
12313 - Registered Nurse II, Specialist	32.34
12314 - Registered Nurse III	39.13
12315 - Registered Nurse III, Anesthetist	39.13
12316 - Registered Nurse IV	46.91
12317 - Scheduler (Drug and Alcohol Testing)	29.89
12320 - Substance Abuse Treatment Counselor	25.55
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	24.93
13012 - Exhibits Specialist II	30.88
13013 - Exhibits Specialist III	37.78
13041 - Illustrator I	24.93
13042 - Illustrator II	30.88

13043 - Illustrator III	37.78
13047 - Librarian	34.20
13050 - Library Aide/Clerk	12.85
13054 - Library Information Technology Systems Administrator	30.88
13058 - Library Technician	17.24
13061 - Media Specialist I	22.28
13062 - Media Specialist II	24.93
13063 - Media Specialist III	27.79
13071 - Photographer I	15.64
13072 - Photographer II	19.65
13073 - Photographer III	24.33
13074 - Photographer IV	29.59
13075 - Photographer V	33.74
13090 - Technical Order Library Clerk	16.14
13110 - Video Teleconference Technician	19.32
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.61
14042 - Computer Operator II	20.81
14043 - Computer Operator III	23.21
14044 - Computer Operator IV	25.79
14045 - Computer Operator V	28.56
14071 - Computer Programmer I	(see 1) 22.18
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	18.61
14160 - Personal Computer Support Technician	25.79
14170 - System Support Specialist	28.56
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	34.24
15020 - Aircrew Training Devices Instructor (Rated)	41.43
15030 - Air Crew Training Devices Instructor (Pilot)	49.67
15050 - Computer Based Training Specialist / Instructor	34.24
15060 - Educational Technologist	36.37
15070 - Flight Instructor (Pilot)	49.67
15080 - Graphic Artist	21.65
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	49.67
15086 - Maintenance Test Pilot, Rotary Wing	49.67
15088 - Non-Maintenance Test/Co-Pilot	49.67
15090 - Technical Instructor	19.87
15095 - Technical Instructor/Course Developer	24.30
15110 - Test Proctor	16.04
15120 - Tutor	16.04
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	10.52

16030 - Counter Attendant	10.52
16040 - Dry Cleaner	12.31
16070 - Finisher, Flatwork, Machine	10.52
16090 - Presser, Hand	10.52
16110 - Presser, Machine, Drycleaning	10.52
16130 - Presser, Machine, Shirts	10.52
16160 - Presser, Machine, Wearing Apparel, Laundry	10.52
16190 - Sewing Machine Operator	13.03
16220 - Tailor	13.75
16250 - Washer, Machine	10.98
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	20.62
19040 - Tool And Die Maker	26.66
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	17.86
21030 - Material Coordinator	19.39
21040 - Material Expediter	19.39
21050 - Material Handling Laborer	15.87
21071 - Order Filler	16.27
21080 - Production Line Worker (Food Processing)	17.86
21110 - Shipping Packer	16.20
21130 - Shipping/Receiving Clerk	16.20
21140 - Store Worker I	13.71
21150 - Stock Clerk	16.83
21210 - Tools And Parts Attendant	17.86
21410 - Warehouse Specialist	17.86
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	39.37
23019 - Aircraft Logs and Records Technician	29.09
23021 - Aircraft Mechanic I	36.79
23022 - Aircraft Mechanic II	39.37
23023 - Aircraft Mechanic III	41.90
23040 - Aircraft Mechanic Helper	23.87
23050 - Aircraft, Painter	33.08
23060 - Aircraft Servicer	29.09
23070 - Aircraft Survival Flight Equipment Technician	33.08
23080 - Aircraft Worker	31.67
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	31.67
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	36.79
23110 - Appliance Mechanic	21.80
23120 - Bicycle Repairer	18.58
23125 - Cable Splicer	35.01
23130 - Carpenter, Maintenance	19.13
23140 - Carpet Layer	22.25
23160 - Electrician, Maintenance	22.40
23181 - Electronics Technician Maintenance I	25.46
23182 - Electronics Technician Maintenance II	27.44

23183 - Electronics Technician Maintenance III	29.58
23260 - Fabric Worker	20.44
23290 - Fire Alarm System Mechanic	28.12
23310 - Fire Extinguisher Repairer	18.58
23311 - Fuel Distribution System Mechanic	23.08
23312 - Fuel Distribution System Operator	16.72
23370 - General Maintenance Worker	17.78
23380 - Ground Support Equipment Mechanic	36.79
23381 - Ground Support Equipment Servicer	29.09
23382 - Ground Support Equipment Worker	31.67
23391 - Gunsmith I	18.58
23392 - Gunsmith II	22.25
23393 - Gunsmith III	25.85
23410 - Heating, Ventilation And Air-Conditioning Mechanic	22.22
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	23.78
23430 - Heavy Equipment Mechanic	25.59
23440 - Heavy Equipment Operator	21.33
23460 - Instrument Mechanic	25.85
23465 - Laboratory/Shelter Mechanic	23.98
23470 - Laborer	15.87
23510 - Locksmith	19.79
23530 - Machinery Maintenance Mechanic	24.30
23550 - Machinist, Maintenance	21.65
23580 - Maintenance Trades Helper	15.51
23591 - Metrology Technician I	25.85
23592 - Metrology Technician II	27.67
23593 - Metrology Technician III	29.44
23640 - Millwright	24.82
23710 - Office Appliance Repairer	17.34
23760 - Painter, Maintenance	17.24
23790 - Pipefitter, Maintenance	25.05
23810 - Plumber, Maintenance	23.24
23820 - Pneudraulic Systems Mechanic	25.85
23850 - Rigger	25.62
23870 - Scale Mechanic	22.25
23890 - Sheet-Metal Worker, Maintenance	23.40
23910 - Small Engine Mechanic	20.47
23931 - Telecommunications Mechanic I	26.93
23932 - Telecommunications Mechanic II	28.82
23950 - Telephone Lineman	34.51
23960 - Welder, Combination, Maintenance	19.12
23965 - Well Driller	25.85
23970 - Woodcraft Worker	25.85
23980 - Woodworker	18.58
24000 - Personal Needs Occupations	
24550 - Case Manager	19.04
24570 - Child Care Attendant	10.92

24580 - Child Care Center Clerk	13.61
24610 - Chore Aide	10.73
24620 - Family Readiness And Support Services Coordinator	19.04
24630 - Homemaker	19.04
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	24.33
25040 - Sewage Plant Operator	20.61
25070 - Stationary Engineer	24.33
25190 - Ventilation Equipment Tender	15.79
25210 - Water Treatment Plant Operator	20.61
27000 - Protective Service Occupations	
27004 - Alarm Monitor	21.33
27007 - Baggage Inspector	13.14
27008 - Corrections Officer	26.32
27010 - Court Security Officer	27.18
27030 - Detection Dog Handler	14.84
27040 - Detention Officer	26.32
27070 - Firefighter	28.80
27101 - Guard I	13.14
27102 - Guard II	14.84
27131 - Police Officer I	31.35
27132 - Police Officer II	34.84
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	14.55
28042 - Carnival Equipment Repairer	16.19
28043 - Carnival Worker	11.07
28210 - Gate Attendant/Gate Tender	16.96
28310 - Lifeguard	13.09
28350 - Park Attendant (Aide)	18.96
28510 - Recreation Aide/Health Facility Attendant	13.85
28515 - Recreation Specialist	23.51
28630 - Sports Official	15.11
28690 - Swimming Pool Operator	19.40
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	25.89
29020 - Hatch Tender	25.89
29030 - Line Handler	25.89
29041 - Stevedore I	23.78
29042 - Stevedore II	27.89
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	18.47
30022 - Archeological Technician II	20.66
30023 - Archeological Technician III	25.58
30030 - Cartographic Technician	25.58
30040 - Civil Engineering Technician	23.49

30051 - Cryogenic Technician I	28.34
30052 - Cryogenic Technician II	31.29
30061 - Drafter/CAD Operator I	18.47
30062 - Drafter/CAD Operator II	20.66
30063 - Drafter/CAD Operator III	23.02
30064 - Drafter/CAD Operator IV	28.34
30081 - Engineering Technician I	16.33
30082 - Engineering Technician II	18.32
30083 - Engineering Technician III	20.50
30084 - Engineering Technician IV	25.39
30085 - Engineering Technician V	31.06
30086 - Engineering Technician VI	37.57
30090 - Environmental Technician	22.55
30095 - Evidence Control Specialist	25.58
30210 - Laboratory Technician	24.11
30221 - Latent Fingerprint Technician I	26.02
30222 - Latent Fingerprint Technician II	28.73
30240 - Mathematical Technician	27.39
30361 - Paralegal/Legal Assistant I	23.32
30362 - Paralegal/Legal Assistant II	28.89
30363 - Paralegal/Legal Assistant III	35.33
30364 - Paralegal/Legal Assistant IV	42.74
30375 - Petroleum Supply Specialist	31.29
30390 - Photo-Optics Technician	25.58
30395 - Radiation Control Technician	31.29
30461 - Technical Writer I	29.08
30462 - Technical Writer II	35.56
30463 - Technical Writer III	43.03
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	28.34
30502 - Weather Forecaster II	34.47
30620 - Weather Observer, Combined Upper Air Or (see 2)	23.02
Surface Programs	
30621 - Weather Observer, Senior (see 2)	25.58
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	11.91
31030 - Bus Driver	18.29
31043 - Driver Courier	14.95
31260 - Parking and Lot Attendant	12.64
31290 - Shuttle Bus Driver	14.10
31310 - Taxi Driver	13.38
31361 - Truckdriver, Light	16.63
31362 - Truckdriver, Medium	18.30
31363 - Truckdriver, Heavy	23.17

31364 - Truckdriver, Tractor-Trailer	23.17
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	11.64
99050 - Desk Clerk	12.74
99095 - Embalmer	29.28
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	14.19
99252 - Laboratory Animal Caretaker II	15.75
99260 - Marketing Analyst	32.61
99310 - Mortician	29.28
99410 - Pest Controller	18.92
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	18.23
99711 - Recycling Specialist	22.87
99730 - Refuse Collector	17.40
99810 - Sales Clerk	13.43
99820 - School Crossing Guard	10.08
99830 - Survey Party Chief	26.89
99831 - Surveying Aide	18.63
99832 - Surveying Technician	22.00
99840 - Vending Machine Attendant	17.97
99841 - Vending Machine Repairer	23.83
99842 - Vending Machine Repairer Helper	17.97

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage

determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like;

minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor

prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that

determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."